THE MEANING OF THE TERM "MANKIND" IN SPACE LEGAL LANGUAGE

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I. INTRODUCTION

The law of outer space has introduced a new term into legal language; it is the term, "mankind." This short survey will attempt to define the legal meaning of this term as it relates to outer space.

Mankind, Humanité, Menschheit, Humanitas, is at first, like every noun, a piece of language, and as such, it is a term with a semantic meaning. This meaning is not difficult to grasp; "mankind" is the notion for the whole of all human beings, the whole of humanity. The question is, therefore, whether there is a special *legal* meaning for the term "mankind;" that is, whether "mankind," the "societas humana" of Cicero,[1] is really a legal notion of its own, and if so, in what sense.

II. USE OF THE TERM IN OUTER SPACE TEXTS

As early as 1956, Haley claimed that outer space should be utilized only for the benefit of all mankind,[2] and one year later Ikeda demanded that outer space be opened "to all humanity."[3] When in 1959, Soviet Premier Khruschchev was asked about the legal consequences of the successful impact by Lunik 2 on the moon, he stated:

> We regard the sending of the rocket into outer space and the delivering of our pennant to the moon as our achievement, and by this word "our", we mean the countries of the entire world, *i.e.*, we mean that this is also your achievement and the accomplishment *of all the people living on earth* [emphasis added].[4]

Yet, one year before 1959, the United Nations began to use the term "mankind" in an obviously special sense. On December 13, 1958, the United Nations General Assembly recognized "the common interest of mankind in outer space."[5] On December 15, 1959,

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[1]De Officiis I, c. 7.

[2]Haley, Basic Concepts of Space Law, 26 Jet Propulsion 951 (1956).

[3]Ikeda, Who Owns Outer Space?, Bungei Shunju 4 (1957).

[4]*See* G. Gál, Space Law 189 (1969) [hereinafter cited as Gál].

[5]U.N. G.A. Res. 1348/XIII (1958).

the General Assembly went further, recognizing "the common interest of *mankind as a whole* [emphasis added] in furthering the peaceful use of outer space," and expressing the belief "that the exploration and use of outer space should be only for the betterment of mankind . . . ."[6]

A special landmark for the development of space law was United Nations Resolution 1721/XVI of 1961, which prohibited national appropriation in outer space and applied international law to outer space and celestial bodies. This resolution also recognized the common interest of mankind in the peaceful uses of outer space and stated that space exploration and use should only be for the betterment of mankind.[7] The United Nations Resolution of October 17, 1963, repeated the phraseology of the preceding resolution,[8] as did the Resolution of December 12, 1963.[9] However, the Resolution of December 12, 1963, went further. It was inspired "by the great prospects opening up before mankind as a result of man's entry into outer space." It stated the belief "that the exploration and use of outer space should be carried on for the betterment of mankind" and solemnly declared as the first principle for space use and exploration that: "The exploration and use of outer space shall be carried on for the benefit and in the interests of all mankind."[10] It declared in a subsequent principle that: "States shall regard astronauts as *envoys of mankind* [emphasis added] . . . ."[11]

The space treaties were formulated in pursuance of and based upon these General Assembly Resolutions. Thus the Outer Space Treaty of January 27, 1967, states:

a) that "all mankind" has a "common interest" in "the progress of the exploration and use of outer space for peaceful purposes;"

b) that "the exploration and use of outer space should be carried on for the benefit of all peoples" (which is a new formulation broadening the idea of the whole of mankind);

c) that "the exploration and use of outer space, including the moon and other celestial bodies . . . *shall be the province of all mankind* [emphasis added] (this seems to be a very basic and important concept);" and

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[6]U.N. G.A. Res. 1472/XIV (1959).

[7]U.N. G.A. Res. 1721/XVI (1961), see § A.

[8]U.N. G.A. Res. 1884/XVIII (1963).

[9]U.N. G.A. Res. 1962/XVIII (1963).

[10]*Id.*, principle no. 1.

[11]*Id.*, principle no. 9.

d) that astronauts will be regarded "as envoys of mankind."[12]

On July 20, 1969, United States astronauts successfully landed on the Moon. Neil Armstrong's first words upon stepping from the Lunar Module onto the surface of the Moon, *i.e.,* the first words of an envoy of mankind expressed after walking upon another celestial body, were: "That's one small step for a man. One giant leap for mankind."[13]

Having been introduced by space law, the term "mankind" was also used in the U.N. General Assembly Resolution of December 17, 1970, which states that:

> The sea-bed and ocean floor, and the subsoil thereof, beyond the limits of national jurisdiction (hereinafter referred to as the area), as well as the resources of *the area, are the common heritage of mankind* [emphasis added].[14]

III. INDICATIONS OF A NEW LEGAL DEVELOPMENT

The quoted passages of international treaties and United Nations General Assembly Resolutions cannot be deemed to be mere eulogy, phrases without any legal meaning. In law, and especially in the legal language of such a supreme body as the United Nations, every word counts; "*even . . . general formulae have their meaning* (emphasis added)."[15] Following this trend of thought, space legal literature has clearly expressed that "mankind" really means "MANKIND," and that this very mankind really benefited from the new legal field of space law. To repeat, mankind–mankind *per se*–acquired something from space law. In support of this point, some recent statements from outstanding space lawyers are presented. Zhukov states that the scientific exploration of outer space shall serve toward a better standard for all mankind; outer space is deemed the domain of the whole of mankind.[16] He states that the successes of some countries shall serve the whole of mankind.[17] Jenks dedicates one entire chapter to "space as a common interest of mankind." He states:

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[12]Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, January 27, 1967, [1967, pt. 3] 18 U.S.T. 2410, T.I.A.S. No. 6347, 610 U.N.T.S. 205 (effective October 10, 1967). See Preamble, Article I, and Article V.

[13]Apollo XI mission to the Sea of Tranquility, the Moon. Statement made at 9:52 P.M. C.D.T. July 20, 1969.

[14]U.N. G.A. Res. 2749/XXV (1970).

[15]*See* M. Lachs, The Law of Outer Space 117 (1972) [hereinafter cited as Lachs]; H. Lauterpacht, The Development of International Law by the I.C.J.227 (1958).

[16]G. Zhukov, Space Law 39 (1966) [hereinafter cited as Zhukov].

[17]*Id.* at 41.

> Whether the law applicable in space is a projection of the law of a world community in which the law is in *a phase of vigorous growth reflecting that of the community itself* [emphasis added] or a limited body of rules binding only by specific assent, may be of fundamental importance; the principle of the common interest of mankind in space answers these questions in favour of interdependence and growth.[18]

His opinion on the notion that astronauts are envoys of mankind is very strong when he says:

> Presumably an "envoy of mankind" can act as such only on behalf of mankind; he cannot therefore, in his capacity as an "envoy of mankind," exercise the public authority of a particular State on its behalf, by any symbolical taking of possession as an assertion of a claim of sovereignty (in any case prohibited elsewhere in the Declaration) or in any similar way.[19]

Zhukov criticizes the strong opinion of Jenks.[20] However, he himself deals with the notion of mankind openly. Gál discusses the notion of space exploration and use as being the joint venture of all mankind and therefore deems outer space to be a *res communis omnium.*[21]

> The anthropothenic character of the law of outer space is the obvious result of man's being its sole architect. Far from reducing, this increases his responsibilities. Not only must he see to it that the law be established in the interest of mankind as a whole, and prevent whatever dangers human action in outer space may produce to life and security on our globe, but he is also bound to provide adequate safeguards to ensure that nothing be done to upset the balance of nature or possibly jeopardize non-terrestrial life whether or in whatever the form in which it may exist.[22]

Sometimes he sees in the notion of "all mankind" a substitute for all countries,[23] and sometimes a substitute for "all peoples."[24] However, he later writes:

> In view of the far reaching consequences implicit in outer-space activities, it is the more imperative that adequate legal safeguards should be developed in good time, in order to protect the rights and interests of all concerned—and above all, those of *the international community as a whole* [emphasis added].[25]

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[18] W. Jenks, Space Law 192, 194 (1965).

[19] *Id.* at 246-47.

[20] Zhukov, *supra* note 16, at 82.

[21] Gál, *supra* note 4, at 123.

[22] Lachs, *supra* note 15, at 23.

[23] *Id.* at 45.

[24] *Id.* at 54.

[25] *Id.* at 118.

In the latest developments, statements and opinions are even more strict. Herczeg states the following:

> In this way, in space law somehow the future of mankind and its conscience lie buried, and this fact by itself will of necessity tend to exert its influence on general international law.
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> After what has been set forth, it is by no means exaggerated to attribute Article 53 of the Vienna Convention on Treaties of 1969, which in the form of a pre-emptory norm for the first time recognizes the international community of states as a whole, to this influence. Nor is the connection in which the Convention refers to the notion of "international community" a matter of indifference. It is the same Article 53 which introduces into international law the notion of *ius cogens* as a norm from which departure is not permitted and which may be modified only by a subsequent norm of general international law. Article 53 declares any treaty conflicting with a pre-emptory norm of general international law valid at the moment of signature of the Convention null and void. Article 64 goes even beyond this as in the event of the birth of a new pre-emptory norm, it declares null and void any treaty in conflict with the new norm.[26]

One of the strongest advocates of the rights of mankind is Cocca, who introduced the notion of "*res communis humanitatis.*"[27] He states:

> The moon and other celestial bodies are, by virtue of the mentioned treaty the subsequent Outer Space Treaty of [1967], a *res communis humanitatis,* which is a legal condition especially elaborated by law for this new field of human activity, and which is derived from the community of interests and benefits recognized in favour of mankind in outer space and celestial bodies.[28]

In his latest book he claims meteorites to be

> extratelluric matters that fall on the surface of the Earth and are of interest to Humanity, the study and analysis of which must not be prevented by any State or private person, alleging that they fell or were found in some territory under their sovereignty or land on their property.[29]

Finally in his paper before the International Astronautical Federation (IAF) Congress in Baku, U.S.S.R. in 1973,[30] he summarizes the discussions between himself, representing Argentina, and the U.S.S.R. regarding the notion of the "common heritage of all mankind." While both sides discussed the meaning of "heritage," neither side questioned

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[26] I. Herczeg, International Space Law and General International Law, Introductory Report, Proc. 16th Colloquium on the Law of Outer Space 3 (1974).

[27] Proc. 6th Colloquium on the Law of Outer Space 3 (1963).

[28] *Id.* at 3-4.

[29] A. Cocca, Universo Y Sociedad 121 (1967).

[30] Cocca, The Principle of the "Common Heritage of All Mankind," Proc. 16th Colloquium on the Law of Outer Space 172 (1974).

the meaning of "mankind." Cocca continues, quoting the "Conclusion of the VIII Hispano-Luso-American Congress on International Law, Buenos Aires, 1969:"[31]

> In view of what has been expressed, we arrive at a first conclusion. In the present state of consideration of the Treaty on the Moon and of the legal problems related to the sea-bed and ocean floor, the first question to be solved is not only to enounce the principle of the "common heritage of mankind" but to give it a juridical content. The law of outer space being normative and conventional, its codification offers a myth which was unknown to international law.[32]

All these papers and many other learned statements deal with the notion of mankind. However, I have found only one author who gave a definitive of the term. That author is Professor Gorove, who correctly said:

> The word "mankind," in the common every-day usage, refers to all human beings wherever they may be found and thus it includes both men and women.
>
> However, mankind as a concept should be distinguished from that of man in general. The former refers to the collective body of people, whereas, the latter stands for the individuals making up that body. Therefore, the rights of mankind should be distinguished, for instance, from the so-called human rights. Human rights are rights which individuals are entitled to on the basis of their belonging to the human race, whereas, the rights of mankind relate to the rights of individuals making up that entity.[33]

Gorove is of the opinion that if the term mankind is to be a legal concept, the question of its representation must be answered. Here, Gorove finds solution only *de lege ferenda;* however, he concludes:

> In fact, perhaps the time has come for the law to move in the direction of recognizing mankind's interests, its rights and obligations, as distinct from those of the nation state, and provide for a fully representative international body with appropriate authority to act in its behalf.[34]

IV. MANKIND AS A NEW SUBJECT OF INTERNATIONAL LAW

Thus, the term "mankind" is used openly and clearly as a beneficiary of space exploration, as a bearer of a domain and a heritage, and as having "envoys." Is it therefore possible and legitimate to consider the whole of mankind as a new subject of international law?

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[31] *Id.*

[32] *Id.*

[33] Gorove, The Concept of "Common Heritage of Mankind": A Political, Moral or Legal Innovation?, 9 San Diego L. Rev. 390, 393 (1972).

[34] *Id.* at 402.

Let us first consider what a legal subject of international law is. It need not be a state or states; that much is obvious. It is commonly recognized that subjects of international law are persons (physical or legal) who are themselves capable of being bearers of rights and/or obligations of international law, even though it is only in individual situations.[35] The International Court on April 11, 1949, followed this direction of thought:

> Les sujets de droit, dans un systeme juridique, ne sont pas necessairement identiques quant à leur nature ou à l'étendue de leurs droits . . . .[36]

We believe that this sentence provides the solution to our problem. The necessities of the community are obvious. Space law and other modern international laws do give "mankind" new rights, as demonstrated above. We agree with Gorove's paper at the Baku Congress of the IAF that the space treaties do not yet make available the property rights of space resources to "mankind as a legal subject."[37] We agree with this because mankind does not yet have an administrative organ to receive and to exercise such rights.

However, in the same treaty in which mankind is mentioned as the beneficiary of space exploration and use, national appropriation of space and celestial bodies is prohibited. Mankind has become a community of fate and fortune,[38] but it cannot be denied that this development has legal significance.

Thus, we come to the conclusion that the legal notion of "mankind" has a special meaning which indicates that mankind is just undergoing the painful process of becoming a new legal subject of international law. This idea may seem revolutionary; however, it is now up for discussion.

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[35] A. Verdross, Völkerrecht 128 (1959).

[36] (The subjects of law, in a legal system, are not necessarily identical in the nature and extent of their rights, editor's translation.) Recueil des arrêts, avis consultatifs et ordonnances de I.C., at 178 (1949).

[37] Gorove, Legal Status of the Natural Resources of the Moon and Other Celestial Bodies, Proc. 16th Colloquium on the Law of Outer Space 177 (1974); Gorove, Property Rights in Outer Space; Focus on the Proposed Moon Treaty, 2 J. Space L. 27-30 (1974).

[38] L. Messner, Naturrecht 545 (1966).